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Looting, Drones, Scams, Price Gouging and Arson — The Crime of Wildfires

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During the first six days of the wildfires, over 30 arrests were made in wildfire zones across Los Angeles County. Arrests include charges for burglary, looting, curfew violations, possession of narcotics, and firearms.

"The LAPD presence at the different burn sites is going to remain in effect until further notice," Captain Mike Lorenz of the Los Angeles Police Department (LAPD), who serves as the incident commander for the evening hours, said.

Lorenz said that LAPD had about 400 personnel at any given time at the Palisades fire. That fire alone has a footprint of destruction that is already one-and-a-half times the entire New York borough of Manhattan.

LOOTING

Los Angeles County District Attorney Nathan Hochman announced on Jan. 13 that 10 people are facing felony charges in connection with crimes committed during the devastating wildfires. "Let me be clear: If you exploit this tragedy to prey on victims of these deadly fires, we will find you and we will prosecute you to the fullest extent of the law," Hochman said.

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Nine of the charges are related to burglaries, and one defendant has been charged with arson for intentionally starting a fire. Among the charges filed in alleged crimes in the vicinity of the Palisades fire area, "Martrell Peoples, 22, and Damari Bell, 21, face charges of first-degree residential burglary and looting during an emergency, with allegations of grand theft exceeding $200,000. Peoples, who was on parole from state prison, and Bell, who is on felony probation, are also charged with firearms violations. If convicted, Peoples could face life in prison, while Bell faces 22 years and 8 months. Travon Coleman, 27, attempted to evade police and crashed into another vehicle in downtown Los Angeles, injuring the driver. Coleman fled on foot but was later detained. He faces felony hit-and-run charges and could also receive a life sentence if convicted.

Hochman warned looters that they are guilty of various degrees of burglary, grand theft and conspiracy — all of which are felonies. Two people were arrested for posing as firefighters to gain access to homes in the Palisades fire evacuation zone. LAPD said that they are paying close attention to everybody that's coming through to the arena — including vetting private security personnel hired by homeowners to monitor their properties. This has hampered efforts by law enforcement to escort some homeowners to return to evacuated areas for their pets and medications.

Los Angeles County Sheriff Robert Luna warned residents about the dangers of entering evacuation zones prematurely since many areas still pose hazards and could potentially become crime scenes. "Every day, we're running across the remains of individuals," Luna said. In addition to valuables being stolen from evacuated (but standing) homes, some looters also target the burned-out remains of cars, to salvage and sell scrap metals from the scene.

DRONES

Less than a week after the fires started, three arrests were tied to civilians flying drones. One drone is confirmed to have collided with a Canadian firefighting plane on Jan. 9. The plane had to be grounded for at least four days for repairs. "Since the start of this incident, we've had 48 total drone incursions into the airspace," said Robert Harris,

Deputy Fire Chief of the Los Angeles County Fire Department. "When those privately owned drones are detected, we have to pause aerial firefighting activities."

California State Assemblymember Jesse Gabriel (D-Encino), co-chair of the California Legislative Jewish Caucus at the State Capitol, had a stern warning to people flying their drones around the area. "There are FBI agents on the ground right now in Southern California," Gabriel said during the Palisades town hall. "If you fly a drone, they will find you. You will be prosecuted to the fullest extent of the law."

The Federal Aviation Administration (FAA) says that interfering with firefighting efforts on public lands is a federal crime, punishable by up to 12 months in prison. The FAA said that drone pilots can be fined up to $20,000 if they interfere with "wildfire suppression, law enforcement or emergency response operations. Your photos and video footage of the wildfires are not worth the lives and crucial operations they jeopardize," the FAA said.

PRICE GOUGING

Hochman and California Attorney General Rob Bonta (D) are warning the public about price gouging. Under California law, businesses cannot increase prices by more than 10% during an emergency. "There are still people in our community who rather than saying 'thank you,' look at this as an opportunity to commit crime and to take illegal profit and advantage over the situation," Hochman said at the Jan. 13 press conference. The DA's office said that there have already been reports of price gouging by hotels and medical supply businesses.

Bonta warned that following devastating wildfires in the past, there have been "businesses and landlords that use increased demand during emergencies to jack up the price of essential supplies and services of gas and water batteries, first aid supplies, construction materials and housing, including hotels and including short-term rentals." Bonta warned that price gouging is punishable by up to one year in jail and carries substantial fines.

Bonta also warned the public to be vigilant about relief scams. "We've seen scams that have gone after elderly individuals, immigrants, others, including those who don't speak English as their first language," he said. "Some even create fraudulent organizations with names that sound eerily legitimate and are easy to fall for. Like 'American Red Cross of California.' Sounds good, sounds legitimate, sounds official. It's not. It sounds like the Red Cross we all know and trust, but that was actually the name of a now defunct organization that the DOJ ordered to cease and desist back in 2019 for misleading donors. It tried to use the good branding and goodwill that the real Red Cross had to create this scam. Scams come in many forms. They're often creative .... They can come by text, they can come by phone calls, emails, social media and crowdfunding sites or in person."

ARSON

Authorities are not ruling out arson as a possible cause of any of the wildfires. As a result, 15 investigators from the Bureau of Alcohol, Tobacco, Firearms and Explosives' (ATF) National Response Team (NRT) were deployed on Jan. 10 to investigate the origin of the Pacific Palisades fire. They include special agents, chemists, engineers, and investigative researchers. "ATF is fully dedicated to providing answers to the Pacific Palisades community," said Jose Medina, Acting Special Agent in Charge of ATF Los Angeles Field Division. "These wildfires have caused immeasurable heartbreak and losses. ATF is determined to leverage every available resource to deliver a thorough and transparent investigation."

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